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ALJ(x)

ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

FILED

NOV 19 2018

Federal Maritime Commission
Office of the Secretary

HANLON SCULPTURE STUDIO

Docket No.: 18-09

Complainant,

vs.

SAE WORLDTRANS LOGISTICS
f/k/a WORLDTRANS

RESPONSE TO RESPONDENT'S MOTION

Respondent.

The Respondent's argument is that Worldtrans has simply vanished into thin air. SAE Worldtrans Logistics operates out of the same address as Worldtrans in San Diego, employs the same people as Worldtrans and the agreement for acquisition of assets specifically states that SAE Worldtrans is purchasing Worldtrans customer lists. The Respondent also attaches an email from SAE Worldtrans to my client addressing the subject matter of the underlying complaint.

The entire argument of the Respondent is that Worldtrans ceased to exist upon the creation of SAE Worldtrans Logistics. Trying to shield one entity behind the corporate veil of a purchasing entity is the reason for the concept of piercing the corporate's veil. Just as Worldtrans is indebted to its purchaser for \$307,000; the actions of Worldtrans towards its customers can't be erased by the acquisition of the company to a parent company.

It is respectfully requested that the Respondent's Motion be dismissed and that they provide an answer to the Verified Complaint so that a joint discovery schedule can be prepared and that a preliminary conference may be scheduled in accordance with the initial Order.



DAVID T. SCHLENDORF, ESQ.

Attorney for Complainant

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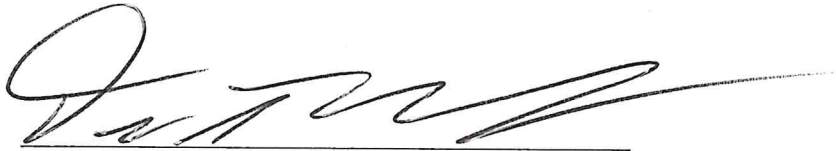
Dated: 11-19-18

CERTIFICATION OF SERVICE

I hereby certify that I have this day served the foregoing documents upon SAE
Worldtrans Logistics f/k/a Worldtrans by certified mail R.R.R. a copy to the Respondent

Dated on this 8th day of November 2018.

By:



DAVID T. SCHLENDORF, ESQ.

For Hanlon Sculpture Studio

Attorney for Complainant

The Law Offices of David T. Schlendorf, LLC

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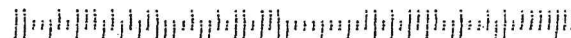


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SAE Worldtrans Logistics
f/k/a Worldtrans
7130 Miramar Rd., Suite 100A
San Diego, CA 92121



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2. Article Number (Transfer from service label)

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